DEPARTMENT SEVEN
JUDGE TIM P. KAM
707-207-7307
TENTATIVE RULINGS SCHEDULED FOR TUESDAY, JULY 7, 2026

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30 p.m.

EBONEE S MARTIN; ET AL. vs. RONALD BRAZELL; ET AL.
Case No. CU23-00315

Motion to be Relieved as Counsel

TENTATIVE RULING

The parties are to appear. At the hearing, the Court’s tentative ruling is to grant the motion by Plaintiff’s counsel to withdraw.

SILVERIO ROSALES vs. MAIN ELECTRIC SUPPLY COMPANY LLC; ET AL.
Case No. CU23-02346

Plaintiff’s Motion to Compel

TENTATIVE RULING

Parties to appear.

LUCIA ACEVES VILLALOBOS vs. GENERAL MOTORS, LLC
Case No. CU23-03523

Motion for Attorneys’ Fees

TENTATIVE RULING

Motion to Tax Costs

Defendant’s motion to tax costs is denied in part and granted in part.

Items in a memorandum of costs are prima facie evidence of their propriety if they appear on their face to be appropriate charges. (*Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1266.) The burden is on the party seeking to strike or tax costs to show that the items were not reasonable or necessary. (*Acosta v. SI Corp.* (2005) 129 Cal.App.4th 1370, 1380; *Ladas v. Cal. State Auto. Ass’n* (1993) 19 Cal.App.4th 761, 774.) A party seeking to strike or tax costs must submit evidence demonstrating that the costs were either unnecessary or unreasonable. (*Jones*, 63 Cal.App.4th at 1266; *County of Kern v. Ginn* (1983) 146 Cal.App.3d 1107, 1113.)

Defendant has not met its burden of demonstrating that the costs claimed for filing fees and service of process fees were not reasonable or necessary. Plaintiff prevailed on both discovery motions for which filing fees are sought and both motions were necessitated by Defendant’s attempt to unilaterally narrow the scope of Plaintiff’s claims. Service of process fees are explicitly authorized by statute (Code Civ. Proc. § 1033.5(a)(4)) and Defendant presents no evidence to suggest that the fees were not actually incurred or unnecessary to the conduct of the litigation. The Defendant’s motion to tax filing fees and service of process fees is denied.

Mediation fees may be awarded in the court’s discretion. (*Berkeley Cement Inc. v. Regents of University of California* (2019) 30 Cal.App.5th 1133, 1140. Where Plaintiffs in Song Beverly cases benefit greatly from mediation resulting in a high number of settlements, the Court finds that it is appropriate for the Parties to equally share the costs of mediation. As such, Defendant’s motion to tax the costs of mediation is granted.

Motion for Attorneys’ Fees

Plaintiff’s motion for attorneys’ fees is granted in part. Plaintiff is awarded attorneys’ fees in the amount of $18,505.

Specifically, the Court reduces the hourly rates and taxes the number of hours spent as set forth below:

1. Attorney Wood:

   (a) 3.8 hours from the 6.8 hours to draft a motion to compel further responses for requests for production.
   (b) 4.9 hours from 7.9 hours to draft a motion to compel the deposition of Defendant’s PMQ.
   (c) 1.1 hours to draft the motion for attorneys fees.

(d) .9 hours auditing billing records in preparation for the motion.

Total hours stricken = 10.7 hours.
The Court awards an additional 2 hours for preparation of reply briefing.
Net reduction in hours = 8.7 hours.

The Court finds a reasonable hourly billing rate for Attorney Wood at $450 per hour.

Attorney Wood's claimed hours	=	41.7
less hours stricken	=	-8.7
		33 hours at $450 = $14,850

2. Attorney Anvar: .3 hours x $450 = $135
3. Attorney Walker: 2.7 hours x $300 =$810
4. Attorney Schwartz: 1.3 hours x $400 = $520
5. Attorney Figura: .8 hours x 350 = $280
6. Paralegal: 19.1 hours x $100 = $1,910

TOTAL (2) – (6) = $3655

TOTAL ATTORNEY FEES: $18,505

The motion is timely. Judgment or dismissal has not been entered in this action and no notice of entry of judgment or dismissal has been served, either by the clerk or by a party. Notice of ***conditional*** settlement was filed on July 10, 2025, which specified that Plaintiff had to file a request for dismissal by January 10, 2026. No dismissal was filed and no party showed good cause why the case should not be dismissed. Consequently, the clock to file a motion for attorneys' fees began to run on January 10, 2026. (Cal. Rules of Court, rule 3.1385(c)(2); *Hatlevig v. Gen. Motors LLC* (2026) 118 Cal.App.5th 644, 649-650.) The motion was filed on May 14, 2026, well before 180 days from the date of the dismissal.

No multiplier is awarded. The Court finds nothing novel, difficult, or out of the ordinary about the present case. Similarly, the Court does not find exceptional skill or exceptional results that would warrant a multiplier.

BROOK TERRELL vs. HEATHER DUKE; ET AL.
Case No. CU24-05460

JAMESON Defendants' Demurrer and Motion to Strike First Amended Complaint

<u>TENTATIVE RULING</u>

Defendants JOHN M. JAMESON CONSTRUCTION, INC. and JOHN M. JAMESON ("JAMESON Defendants") demur to and move to strike portions of Plaintiff BROOKE TERRELL's first amended complaint ("1AC") alleging causes of action against them for negligent misrepresentation, fraud, and negligence.

Judicial Notice. Matters subject to judicial notice may support a demurrer under Code of Civil Procedure section 430.30, subdivision (a). The court declines to take judicial notice of JAMESON Defendants' proffered declaration of counsel as there is no basis for taking judicial notice of a declaration of counsel.

Legal Standard on Demurrer. "The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc*. (2004) 118 Cal.App.4th 1413, 1420.) A complaint is sufficient if it alleges ultimate rather than evidentiary facts, but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id*. at 1098–1099; *Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 551, fn. 5 [ultimate facts sufficient].) The Court "assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law." (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

Legal Standard for Motion to Strike. Code of Civil Procedure section 436, subdivision (a) permits a court to strike out any irrelevant, false, or improper matter inserted in any pleading, upon a motion or in its discretion. Irrelevant matters are those not essential to the statement of a claim or defense or not pertinent to or supported by an otherwise sufficient claim or defense and demands for relief not supported by the allegations. (Code Civ. Proc., § 431.10.) "The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice;" therefore, a motion to strike may not be based upon extrinsic evidence such as a declaration. (Code Civ. Proc., § 437, subd. (a).)

Analysis of Demurrer. Plaintiff's 1AC is not uncertain or unintelligible. Plaintiff's causes of action alleged against JAMESON Defendants – those for negligent misrepresentation, negligent misrepresentation, and negligence – contain clear allegations of fact stating JAMESON Defendants' liability beyond her use of Does: she alleges that she engaged JAMESON Defendants to provide her a quotation of repair costs, that JAMESON Defendants falsely represented their qualifications to provide such a quotation, and that they falsely and/or negligently provided her an unrealistically low quotation. (1AC at ¶¶ 33-35, 49-53, 72-73, 75.) Her reliance and their intent to induce reliance can be inferred from the simple fact that they offered a quotation in the context of being retained to inform Plaintiff of what the costs to repair the property would be so that she could confidently proceed with a real estate purchase. (*Id*. at ¶¶ 22, 36.)

Analysis of Motion to Strike. Plaintiff's prayer properly requests estimated damages from harms allegedly caused by JAMESON Defendants' acts or omissions, notably those flowing from her allegedly being deceived into continuing with the real estate purchase and having to engage in repairs more costly than estimated. That portion of the prayer is not appropriately struck from the pleading. However, Plaintiff concedes that she alleges no basis for the recovery of attorneys' fees; her prayer for attorneys' fees is appropriately struck from the pleading.

Conclusion. JAMESON Defendants' demurrer is overruled. JAMESON Defendants' motion to strike is granted without leave to amend as follows: the 1AC's prayer for attorneys' fees is ordered struck. JAMESON Defendants' motion to strike is otherwise denied.

ANTHONY SMITH vs. HARSHAD B. WADHAR, MD
Case No. CU24-07285

Plaintiff's Motion to Compel Further Responses to Requests for Production, Set Three

<u>TENTATIVE RULING</u>

Plaintiff ANTHONY SMITH's motion to compel Defendant HARSHAD B. WADHAR, M.D.'s further responses to Plaintiff's requests for production, set three, is denied. Defendant served his responses to Plaintiff's requests for production by mail on August 20, 2025, giving Plaintiff fifty days to move to compel further responses. (Code Civ. Proc., §§ 1013, 2031.310, subd. (c).) This set Plaintiff's motion deadline at October 9, 2025. Plaintiff did not file his motion – even measured from the time that he submitted the motion to prison authorities per the "prison mailbox rule" – until October 21, 2025.

MARSHALL TUBBS vs. COUNTY OF SOLANO GENERAL SERVICES; ET AL.
Case No. CU25-09311

Demurrer by COUNTY OF SOLANO GENERAL SERVICES DEPARTMENT to Complaint

<u>TENTATIVE RULING</u>

In general, as a prerequisite to the filing of FEHA-based causes of action, the plaintiff must first file a charge with the DFEH (California Dept. of Fair Employment and Housing) or in more recent times the California Civil Rights Department (CRD), and then upon issuance of a right-to-sue letter, file within the applicable time a civil complaint alleging those FEHA-based causes of action. Government Code §12960; <u>Kim v. Konad USA Distribution, Inc.</u> (2014) 226 Cal.App.4th 1336, 1345 ["Before filing a civil action alleging FEHA violations, an employee must exhaust his or her administrative remedies with DFEH . . . Exhaustion includes the timely filing of administrative complaints addressing the claims and parties at issue, as well as the procurement of right-to-sue letters"]; Blum v. Superior Court (2006) 141 Cal.App.4th 418, 422 [similar description of requirement of exhaustion of administrative remedies before bringing FEHA-based causes of action]; Medix Ambulance Serv. v. Superior Court (2002) 97 Cal.App.4th 109, 116 [same].

Plaintiff's complaint claimed that the charge he filed with the EEOC, and the EEOC's subsequently issued right-to-sue letter served to exhaust his administrative remedies.

California cases uniformly reject this argument. Foroudi v. The Aerospace Corp. (2020) 57 Cal.App.5th 992, 1001 ["the exhaustion of EEOC remedies does not satisfy the exhaustion requirements for state law claims"]; Martin v. Lockheed Missiles & Space Co. (1994) 29 Cal.App.4th 1718, 1726-1727 [rejecting the plaintiff's "dual filing agreement" argument that an EEOC charge and right-to-sue letter sufficiently exhausts as to FEHA claims, and finding that a DFEH right-to-sue letter is a requirement before filing a complaint containing FEHA causes of action].

Plaintiff's opposition declaration attached a copy of a right-to-sue letter from the CRD, dated March 19, 2025, which confirmed that the charge Plaintiff had filed with the EEOC "is being dual filed with the [CRD] by the [EEOC]", with EEOC responsible for investigating, although CRD was immediately confirming Plaintiff's right to file a private lawsuit in state court, "within one year from the date of this notice."

Plaintiff's complaint, filed on October 10, 2025, was filed within seven months of the date of the CRD right-to-sue letter.

While Plaintiff's complaint does not contain any allegations about the CRD's right-to-sue letter, it can easily be amended to do so.

The court therefore sustains the demurrer by COUNTY OF SOLANO GENERAL SERVICES ("GS") to causes of action 1-4 of Plaintiff's complaint, all FEHA-based causes of action, with 30 days leave to file a first amended complaint to allege the CRD right-to-sue letter and reallege these four causes of action.

As to causes of action five through seven (5th cause of action for constructive discharge in violation of public policy, 6th cause of action for intentional infliction of emotional distress, and 7th cause of action for negligent supervision, hiring and retention), exhaustion of or excuse from compliance with a different administrative remedy must be alleged.

For any claim for "money or damages" against a public entity, before filing the complaint, the plaintiff must first timely present a government claim to the entity, and wait for it to be rejected or deemed rejected.

> Government Code sections 905 and 945.4 . . . require, as a condition precedent to bringing suit against a local public entity, the timely presentation to the defendant of a written claim and the rejection of the claim in whole or in part . . .
>
> Where compliance with the Tort Claims Act is required, the plaintiff must allege compliance or circumstances excusing compliance, or the complaint is subject to general demurrer. (Dujardin v. Ventura County Gen. Hosp. (1977) 69 Cal.App.3d 350, 355 [138 Cal.Rptr. 20]; San Leandro Police Officers Assn. v. City of San Leandro (1976) 55 Cal.App.3d 553, 559 [127 Cal.Rptr. 856]; see Van Alstyne, Cal. Government Tort Liability Practice (Cont.Ed.Bar 1980) § 5.77, p. 569, hereafter cited as Van Alstyne.) <u>Snipes v. City of Bakersfield</u> (1983) 145 Cal.App.3d 861, 865.

FEHA causes of action are exempt from the claims presentation requirement, as they are subject to their own pre-filing notice and investigation process.

> [T]he purposes and procedures of the FEHA demonstrate a legislative intent that actions against governmental entities brought under the FEHA are to be excepted from the general requirements of the Tort Claims Act. The FEHA constitutes a comprehensive scheme for combating employment discrimination, with specific time limitations related to the remedies provided. <u>Id.</u> at 865.

The pre-filing notice and investigation process for FEHA claims includes the option that DFEH/CRD pursue administrative remedies on behalf of the claimant, although it often instead simply issues a right-to-sue letter to the claimant.

> In order to bring an action under FEHA, an individual is required to exhaust his administrative remedies under the act. (Commodore Home Systems, Inc. v. Superior Court, supra, 32 Cal.3d 211, 214, 218; Hollon v. Pierce (1967) 257 Cal.App.2d 468, 475-476 [64 Cal.Rptr. 808].) It was the intent of the Legislature to provide an administrative forum for eliminating unlawful employment practices "by conference, conciliation, and persuasion." (Gov. Code, § 12963.7, subd. (a).) ". . . [There] is no right to sue, even after conciliation breaks down, unless the Department fails to file an accusation before the Commission. To that extent the availability of court remedies remains within the Department's control. [Also], the compliance structure of the FEHA encourages cooperation in the administrative process. While that process continues the Department acts on the victim's behalf and absorbs costs of pursuing his claim. Court action inevitably is speculative, and the FEHA makes civil suit the claimant's sole responsibility." (Commodore Home Systems, Inc. v. Superior Court, supra, 32 Cal.3d at p. 218.) <u>Id.</u> at 866-867.

Thus, FEHA causes of action are exempt from the government claims procedure, because of the special other prior notice procedure established for FEHA claims.

> The above provisions demonstrate a legislative intention to exempt actions under the FEHA from the general Tort Claims Act requirements. The procedural guidelines and the time framework provided in the FEHA are special rules for this particular type of claim which control over the general rules governing claims against governmental entities. The FEHA not only creates a statutory cause of action, but sets out a comprehensive scheme for administrative enforcement, emphasizing conciliation, persuasion, and voluntary compliance, and containing specific limitations periods. (See Tobriner, California FEPC (1965) 16 Hastings L.J. 333.) Id. at 868.

FEHA causes of action are also deemed to be primarily for injunctive relief, with money damages being "incidental" to that primary relief.

> [T]he claim is not for "money or damages" within Government Code sections 905 and 945.4, and therefore not subject to demurrer for failure to comply with the Tort Claims Act. The notice of claim provisions do not apply to an action which seeks principally injunctive relief for employment discrimination. The action under the FEHA basically is nonpecuniary, the claims for damages and back pay being incidental to the claim for injunctive relief.
>
> The general scope of the Tort Claims Act notice-of-claim provisions is limited to "claims for money or damages . . . ." (Gov. Code, §§ 905, 905.2.) This language exempts actions seeking specific relief other than money or damages, such as injunctive or declaratory relief, and certain actions in mandamus. (See Van Alstyne, supra, § 5.7, pp. 436-437, § 5.23, pp. 460-462; see also Gov. Code, § 814: "Nothing in this part affects . . . the right to obtain relief other than money or damages against a public entity . . . .") Because appellant's complaint clearly states a cause of action for injunctive relief, the general demurrer was sustained improperly. (See Minsky v. City of Los Angeles, supra, 11 Cal.3d 113, 121, fn. 12; L. A. Brick etc. Co. v. City of Los Angeles (1943) 60 Cal.App.2d 478, 486 [141 P.2d 46].)
>
> Furthermore, an action for specific relief does not lose its exempt status solely because incidental money damages are sought. (See People v. City of Los Angeles (1958) 160 Cal.App.2d 494, 508 [325 P.2d 639]; L. A. Brick etc. Co. v. City of Los Angeles, supra, 60 Cal.App.2d 478, 486, cited in Minsky, supra, 11 Cal.3d at p. 121, fn. 12.) Id. at 869-870.

The 5th through 7th causes of action are not FEHA causes of action, and thus are subject to the government claims presentation requirement, not the DFEH/CRD charge filing requirement.

Plaintiff's complaint does not allege facts showing compliance with or excuse from the government claims presentation requirement.

The court therefore sustains GS's demurrer to the non-FEHA causes of action (5th cause of action for constructive discharge in violation of public policy, 6th cause of action for intentional infliction of emotional distress, and 7th cause of action for negligent supervision, hiring and retention) for failure to allege facts showing compliance with or excuse from the government claim presentation requirement.

Plaintiff's opposition declaration claims that on October 2, 2025, via email he sent written notice of his claims against the county "by email to the civil division of the Solano County Superior Court . . . , with a copy to the Clerk of the Board of Supervisors . . . " which "included a detailed formal complaint describing the workplace harassment, retaliation, discrimination, and constructive discharge I experienced while employed with the County of Solano General Services Department, along with the names of the responsible parties", and received from the Board of Supervisors "an automated acknowledgement confirming my correspondence had been received and forwarded to the appropriate office for review".

The declaration attached a copy of an email Plaintiff claims to have sent to the Board of Supervisors (and the court) to accompany what he called a Board of Supervisors complaint letter. But no copy of that "detailed letter" was attached anywhere to Plaintiff's declaration.

Even if the detailed letter had been attached, per the County's website instructions for presenting a government claim, email transmission of it to the Board of Supervisors may not have been sufficient, nor did Plaintiff wait for the claim to be rejected or deemed rejected before filing the complaint (as the letter was sent only about a week before the filing of the complaint).

While it is not clear to the court that Plaintiff can successfully allege facts sufficient to show compliance with or excuse from the government claims presentation requirement, in an abundance of caution, the court sustains GS's demurrer to these three non-FEHA causes of action, with 30 days leave to amend.

Thus, the court sustains GS's demurrer to the entirety of Plaintiff's complaint, with 30 days leave for Plaintiff to file a first amended complaint, to reallege any or all of the FEHA causes of action and the non-FEHA causes of action.

CHAMPION MORTGAGE vs. FREDERICK COOLEY; ET AL.
Case No. FCS058061

Motions to File Second Amended Complaint and Substitute Plaintiff

<u>TENTATIVE RULING</u>
Plaintiff CHAMPION MORTGAGE COMPANY ("CHAMPION") moves for leave to file a second amended complaint substituting WILMINGTON SAVINGS FUND SOCIETY, FSB, NOT IN ITS INDIVIDUAL CAPACITY BUT SOLELY AS OWNER TRUSTEE FOR

CASCADE FUNDING MORTGAGE TRUST HB15 (“CASCADE”) as Plaintiff in its place in this foreclosure action against FREDERICK MARC COOLEY, individually and as Administrator of THE ESTATE OF FREDERICK GRANT COOLEY (“COOLEY”). CHAMPION makes a separate motion to substitute in CASCADE that has the same legal effect.

The basis for the motions is that CHAMPION assigned its rights in the relevant deed of trust to a separate entity before filing suit and thus lacked standing to sue at the time the original complaint in this action was filed. CASCADE is the present owner of the interest in the relevant deed of trust. COOLEY contends that this is not permissible amendment due to the fact that CHAMPION lacked standing to bring the original complaint and the statute of limitations has since expired without any actual interest holder asserting an action prior.

The trial court may, in its discretion, allow amendments to pleadings “in furtherance of justice.” (Code Civ. Proc., § 473, subd. (a)(1).) The court has wide discretion here but repeatedly stated policy encourages liberality in allowing amendment. (See *Frost v. Witter* (1901) 132 Cal. 421, 424; *Cardenas v. Ellston* (1968) 259 Cal.App.2d 232; *Kolani v. Gluska* (1998) 64 Cal.App.4th 402, 412.) Indeed, if the motion to amend is timely made and granting the motion will not prejudice the opposing party, it is error to refuse permission to amend where the refusal also results in a party being denied the right to assert a meritorious action or defense. (*Morgan v. Superior Court* (1959) 172 Cal.App.2d 527, 530.)

Code of Civil Procedure section 368.5 provides that an action does not abate due to transfer of an interest in the action; the action may continue either in the name of the original party or the court may allow the person to whom transfer was made to be substituted in.

Klopstock v. Superior Court of San Francisco (1941) 17 Cal.2d 13 (*Klopstock*) offers California Supreme Court guidance on the question of whether CHAMPION may substitute in to this action CASCADE, a present holder of an interest in this action, despite the fact that CHAMPION lacked standing to bring this action at the time it was filed. In *Klopstock* three brothers – Isaac, Frederick, and Samuel – owned a corporation. (*Id*. at p. 15.) After Isaac died his wife Grace and Frederick became co-executors of his estate. (*Ibid*.) When Grace died while the estate was in probate, Mr. Samter became executor of her will and asserted an action on behalf of the corporation against Frederick and Samuel for alleged misuse of corporate funds, operating on the theory that Grace had stock in the corporation because Isaac had left it to her. (*Ibid*.) Lower courts determined that Samter was not in fact the proper party to bring the derivative action; after Frederick was removed as executor of Isaac’s estate, Samter moved to substitute in new administrator Flora Short. (*Id*. at pp. 15-16.) The defendants objected that the original action had been filed by a party without standing and asserted that amendment could not be allowed to cure such a foundational defect, and moved to dismiss. (*Id*. at p. 16.) The California Supreme Court affirmed that Samter had not been the right person to file a derivative action because he was the administrator of Grace's estate, not Isaac's, and Grace's estate did not have corporation stock at the time of filing. (*Id*. at p. 17.) The high court then approved the lower court's permission of amendment, stating that amendment is acceptable so long as it does not operate to state a wholly different cause of action, meaning that the defendant is not required after amendment to answer a wholly different legal liability or obligation than that originally stated. (*Id*. at pp. 19-20.) Substituting in Short did nothing to change the allegations Samter had stated, so amendment was permissible under modern liberal standards. (*Id*. at p. 21.)

COOLEY contends *Klopstock* is inapplicable because there was no mention there of the substituted plaintiff coming in after expiration of the statute of limitations. Though the point is not part of *Klopstock*'s holding, the thrust of *Klopstock* is that amendment to substitute in a plaintiff with standing over one without is permissible so long as the underlying action does not wholly change. In the present case, COOLEY has been litigating a certain set of facts asserted by CHAMPION, and that CASCADE will assert those same facts after the time for CASCADE to bring an independent action is up does not change that it is still the same set of facts with which COOLEY is familiar. *Klopstock* does not directly hold that the statute of limitations is not a factor but it supports its holding by approving reference to cases that disregarded the statute of limitations in the context of permitting amendment to replace a plaintiff lacking standing with one possessing standing. *Klopstock* stated that its decision was "supported by the reasoning of decisions both in California and elsewhere" such as *Cox v. San Joaquin Light & Power Corp.* (1917) 33 Cal.App. 522 and *Reardon v. Balaklala Consol. Copper Co.* (N.D. Cal. 1912) 193 Fed. 189, both of which permitted amendment to substitute in a proper plaintiff even though the statute of limitations had run. (*Klopstock* at pp. 21-22.)

More recent precedent following *Klopstock* confirms this as well. *Cloud v. Northrop Grumman Co.* (1998) 67 Cal.App.4th 995, 1006-1007 interprets *Klopstock* to state that the statute of limitations is not a factor and even states that the policy liberally favoring amendment has only gotten broader since *Klopstock*.

COOLEY's appellate district precedent *Diliberti v. Stage Call Corp.* (1992) 4 Cal.App.4th 1468 (*Diliberti*) does not cite *Klopstock*, which is California Supreme Court authority. There is also a ready distinction between *Diliberti* and *Klopstock*: the former is a personal injury case where the change in plaintiff makes a material change in the case the defendant is to answer because who was injured, how, and by whom is central to a personal injury case. *Diliberti* featured an automobile collision case in which an uninjured driver was initially named as the plaintiff instead of an injured passenger in the driver's car; in such a case the appellate court held that substitution of the plaintiff after the statute of limitations had expired was unacceptable. (*Diliberti* at p. 1469.) The initial complaint did not even mention the actually injured person. (*Id*. at p. 1470.) The appellate court found this important. It stated that it "would have no trouble permitting the substitution of [injured passenger] for [uninjured driver] if the body of the complaint sounded as a claim for a passenger." (*Ibid*.) In other words, had the proposed *Diliberti* substitution done nothing more than change a name in the caption while presenting the same facts for the defendant to answer (like CHAMPION's proposed substitution here) the expiration of the statute of limitations would have been of no moment.

CHAMPION's motions are granted.

Department 7 is inviting you to a scheduled ZoomGov meeting.
Join ZoomGov Meeting

https://solano-courts-ca-gov.zoomgov.com/j/1611554664?pwd=T3U4QlBGWWNWaGlieXJTcGxIVHRXZz09

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